

Anil Sharma v. Managing Director, U.P.P.C.L. & Anr.

High Court of Judicature at Allahabad · Division Bench · 11 May 2016 · Writ-C No. 21502 of 2016 · Writ-C No. 21502 of 2016 · **Writ disposed; relegated to clause 6.5(b) complaint; recovery stayed four weeks.**

HEADNOTE

A consumer who disputes the accuracy of an electricity bill and challenges recovery of alleged outstanding dues has a remedy under clause 6.5(b) of the U.P. Electricity Supply Code, 2005 by complaint to the competent authority. Disputed questions of fact being involved, the High Court declined to examine the bill on merits, granted liberty to complain under clause 6.5(b) within one week, directed the authority to decide within two weeks, and kept recovery in abeyance for four weeks or until that decision, whichever was earlier.

FACTUAL SUMMARY

Anil Sharma, an electricity consumer, petitioned the High Court of Judicature at Allahabad against recovery proceedings started by U.P. Power Corporation Limited for alleged outstanding dues. He challenged the correctness of the bill on which the recovery rested and sought to have those proceedings set aside. Counsel for the Corporation appeared. The dispute was confined to the accuracy of the billed amount; no other statutory challenge was framed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill-accuracy-dispute

HOLDING

Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 provides the complaint to the competent authority where a consumer disputes the accuracy of a bill. Because disputed questions of fact were involved and that remedy existed, the writ challenging recovery of outstanding dues was disposed of with liberty to complain under clause 6.5(b) within one week; the authority was to consider and pass orders in accordance with law within two weeks; recovery remained in abeyance for four weeks or till disposal of the complaint, whichever earlier, and was to abide by that order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL AND LAWFULNESS OF THE RECOVERY

The Court did not examine the bill or the recovery on merits; it relegated the petitioner to the clause 6.5(b) complaint. ¶ 1